

**SUPREME COURT OF THE STATE OF
NEW YORK COUNTY OF BRONX**

KEITH WRIGHT,

Plaintiff,

- against -

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ABDIEL ANDERSON AND DETECTIVE JOHNNY
ELLIOTT,**

Defendant(s).

Index No.

Date purchased

Plaintiff(s) designate(s)

Bronx County
as the place of trial.

The basis of the venue is
COUNTY OF OCCURRENCE

SUMMONS

Plaintiff resides at 1481 Washington
Ave., County of Bronx New York

To the above named Defendant(s)

You are hereby summoned to answer the complaint this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: August 4, 2010

Joel K. Peister, Esq.
Attorney(s) for Plaintiff
9 East 40th Street, 11th Floor.
New York, New York 10016
(212) 889-8151

Defendant's Address:

**The City of New York
100 Church Street
New York, NY 10007**

**New York City Police Department
One Police Plaza
New York, NY 10038**

**Police Officer Abdiel Anderson
Shield # 1429
NBBX
One Police Plaza
New York, NY 10038**

**Detective Johnny Elliott
Shield # 4943
NBBX
One Police Plaza
New York, NY 10038**

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BRONX COUNTY

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COUNTY OF BRONX**

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JOHNNY ELLIOTT,**

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VERIFIED COMPLAINT

X

Plaintiff KEITH WRIGHT by his attorney, JOEL K. PEISTER, as and for his complaint against the defendants, alleges, upon information and belief, the following:

NATURE OF ACTION

1: KEITH WRIGHT, seeks to recover damages for assault, battery, false arrest, false imprisonment and malicious prosecution of them by certain members of the New York City Police Department, who were not properly supervised when they arrested the plaintiff on or about September 4, 2009, in the County of Bronx, New York.

2. At the time of the false arrest, etc. the plaintiff, KEITH WRIGHT was a resident of the Bronx, New York.

PARTIES

3: That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, hereinafter referred to as the "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

4: That at all times hereinafter mentioned the Defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "POLICE", was and is an agency of the defendant, "CITY".

5: That at all times hereinafter mentioned the defendant, Police Officer ABDIEL

ANDERSON, Shield # 1429, NBBX, hereinafter referred to as "ANDERSON" and was and is a Police Officer, employed by the defendant "POLICE".

6: That on and prior to the 4th day of September 2009 the aforesaid defendant, "ANDERSON" was employed by the defendant "POLICE" and was assigned in the borough of Bronx, County of Bronx, City and State of New York.

7: That at all times hereinafter mentioned the defendant Detective Johnny Elliot, Shield # 4943, NBBX, hereinafter referred to as "ELLIOTT", was and is a Police Officer employed by the Defendant "POLICE".

8: That on and prior to the 4th day of September 2009 the aforesaid defendant "ELLIOTT" was employed by the defendant "POLICE" and was assigned in the borough of Bronx, County of Bronx, City and State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

9: That on or about the 4th day of September, 2009 the plaintiff, KEITH WRIGHT while lawfully in the vicinity of 3706 Third Ave., County of Bronx, City and State of New York, was without just cause or provocation, maliciously, intentionally and falsely accused by defendant "ANDERSON" on the information of "ELLIOTT" of having committed the crime of Criminal Sale of a Controlled Substance 3rd Degree (P.L.S. 220.39) and related charges.

10: That on or about the 4th day of September, 2009 the Plaintiff, KEITH WRIGHT was without just cause or provocation, and with reckless and negligent disregard for the truth, and without investigation, placed under arrest by defendants, their agents, servants, and/or employees, and in particular, by defendant "ANDERSON".

11: That on or about the 4th day of September, 2009 and upon arresting the plaintiff KEITH WRIGHT, and depriving him of his liberty, the defendant "ANDERSON" took the plaintiff, KEITH WRIGHT to a police station in the County of the Bronx and entered him on the records as under arrest on charges of Criminal Sale of a Controlled Substance 3rd Degree (P.L.S. 220.39) and related charges.

12: That on or about the 4th day of September, 2009 the defendant “ANDERSON” further caused the plaintiff, KEITH WRIGHT, to have his fingerprints and photographs to be taken in accordance with police procedures for the arrest of criminals and held him on those charges at a police station and thereafter at the Courthouse located at 215 East 161st Street, Borough of Bronx, County of Bronx, City and State of New York.

13: That on or about the 5th day of September, 2009, a criminal complaint was issued by defendants, their agents, servants and/or employees, and in particular, by defendant “ANDERSON”, and a criminal action against the plaintiff KEITH WRIGHT, was commenced.

14: That solely as a result of the aforesaid, the plaintiff, KEITH WRIGHT’S life was interfered with.

15: That solely as a result of the assault, battery, false arrest, false imprisonment and malicious prosecution of the plaintiff, KEITH WRIGHT, was deprived of his liberty and was subjected to scorn and ridicule, and was degraded in the esteem of the community.

16: That on or about November 25, 2009, the plaintiff caused the Notice of Claim, in writing, sworn to by and on behalf of the claimant, the plaintiff herein, containing the statement of the name and place of residence of the claimant by the street and number and his attorney and describing the time when the particular claim and circumstances under which the damages and injuries to be personally served upon the defendant CITY, their agents, servants an/or employees at the Law Department; this action was not commenced to recover upon or force claim until the expiration of 30 days or thereafter, and this action was commenced within the time allowed by law.

17: That the defendants, THE CITY OF NEW YORK, ET., AL., requested a hearing pursuant to §50-H of the General Municipal law and that such was held on April 19, 2010.

18: That all charges against the plaintiff KEITH WRIGHT , were dismissed on the Motion of the Prosecutor and the Court records sealed on October 15, 2009, Part B, Bronx Criminal Court, the Honorable Justice Seewald, presiding.

19: That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

20: Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" THROUGH "18" with the same force and effect as if fully set forth at length herein.

21: That at all times hereinafter mentioned the aforesaid assault, battery, false arrest, false imprisonment and malicious prosecution was caused solely as a result of the negligence of the defendants, their agents, servants and/or employees.

22: That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

23: Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" THROUGH "18" and "20" THROUGH "21" with the same force and effect as if fully set forth at length herein.

24: That on or about the 4th day of September, 2009, and while in the custody of the defendants in the County of Bronx, New York, the plaintiff, KEITH WRIGHT, was intentionally pushed, assaulted, battered, violated, humiliated and handcuffed by the defendants, "ANDERSON", and "ELLIOTT" acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants, within the scope of their employment, and in particular defendants "ANDERSON", and "ELLIOTT" intentionally willfully and maliciously assaulted and battered the plaintiff, KEITH WRIGHT, in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did violent and/or menacing acts which threatened such contact to the plaintiff, KEITH WRIGHT, and their acts caused apprehension of such contact in the plaintiff, and in a

hostile and/or offensive manner touched and beat the plaintiff an/or offensive bodily contact to the plaintiff and caused such battery in and about the wrists and hands, and the neck and face.

25: That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular "ANDERSON" and "ELLIOTT" acting within the scope of their employment and authority and without any probable or reasonable cause, the plaintiff, KEITH WRIGHT, suffered great and permanent bodily injury in and about his wrists and hands, neck and face and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that was otherwise damaged and will continue to be so.

26: That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the jurisdiction of all lower courts.

AS AND FOR FOURTH CAUSE OF ACTION

27: Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" THROUGH "18", "20" THROUGH 21" and "23" THROUGH "25" with the same force and effect as is fully set forth at length herein.

28: That the defendants, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel and in particular defendants "ANDERSON" and "ELLIOTT", and in their hiring practices in the exercise of their functions; in that they had a reckless lack of cautious regard for the rights of the public, including plaintiff, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

29: That the defendants, their agents, servants and employees to adequately and properly train, supervise, discipline or in any other way control the behavior or their personnel in the exercise of their functions, was carried out willfully, wantonly, maliciously with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the pubic, including plaintiff.

30: Due to the acts of the defendants, their agents, servants and employees herein, and

failure to discipline and properly hire their employees and the continued employment of said employees presents a clear and present danger to the citizens of the City of New York and State of New York.

31: That the plaintiff, KEITH WRIGHT, did not consent to the aforementioned conduct of the defendants, their agents, servants and employees in any way contribute to the said conduct.

32: That the injuries sustained by the plaintiff, KEITH WRIGHT, resulted from the negligence of the defendants in employing and continuing to employ, without adequate training and supervision, employees of violent character, unsuitable temperament and insensitive disposition.

33: That by reason of the foregoing, the plaintiff has been damaged in a sum exceeding the jurisdiction of all lower courts.

WHEREFORE, The plaintiff demands judgment against the defendants on the First Cause of Action in a sum exceeding the jurisdiction of all lower courts, that the plaintiff demands judgment against the defendants on the Second Cause of Action in the a sum exceeding the jurisdiction of all lower courts, that the plaintiff demands judgment against the defendants on the Third Cause of Action in a sum exceeding the jurisdiction of all lower courts, that the plaintiff demands judgement against the defendants on the Fourth Cause of Action in a sum exceeding the jurisdiction of all lower courts, together with the costs and disbursements of this action.

Dated: New York, New York

August 4, 210

TO: MICHAEL A. CARDOZO, ESQ.
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007



JOEL K. FEISTER ESQ.
Attorney for Plaintiff
9 E. 40th Street 11th Floor
York, New York 10016
(212) 889-8151

**SUPREME COURT OF THE STATE OF
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KEITH WRIGHT,

Plaintiff,

- against -

VERIFICATION

**THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
ABDIEL ANDERSON AND DETECTIVE JOHNNY
ELLIOTT,**

Defendant(s).

STATE OF NEW YORK }
 } ss:
COUNTY OF NEW YORK }

KEITH WRIGHT being duly sworn, deposes and says:

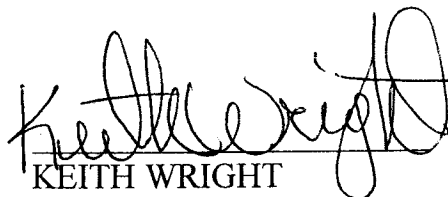
1. I am the Plaintiff in the above-captioned action and as such I am fully familiar with the facts and circumstances of this matter.
2. I have read the Complaint and the allegations contained therein are true to my knowledge except as to matters alleged on information and belief, and as to those matters, I believe them to be true.
3. The basis of my information and belief are: my review of papers and conversations with others.

*Sworn to before me this
25th, day of August, 2010*

NOTARY PUBLIC

JOEL K. PEISTER
Notary Public, State of New York
No. 02PE4694041
Qualified in New York County
Certificate filed in New York County
Commission Expires Feb. 28, 2014

2014


KEITH WRIGHT